

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT

IN RE: THE MARRIAGE OF

SARAH HANSON,

Petitioner/Appellee/Wife,

and

CHRISTOPHER HANSON,

Respondent/Appellant/Husband.

Case No.: 2D2025-1936

Lower Tribunal No.: 24-DR-001150

INITIAL BRIEF OF APPELLANT,

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Date: August 13, 2025

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Jurisdictional Statement

1. This Court has jurisdiction pursuant to Article V, § 4(b)(1) of the Florida Constitution and Florida Rule of Appellate Procedure 9.130(a)(3), which authorizes appeals from non-final orders determining venue in civil actions, including dissolution of marriage proceedings. The order denying Appellant's motion to transfer venue (R. 1-4) was rendered on June 24, 2025. Appellant filed a timely motion to vacate (R. 23-29) and a timely notice of appeal (R. 61). The trial court denied the motion to vacate on August 1, 2025. This Court confirmed jurisdiction as a non-final appeal on July 24, 2025 (R. 65).

Statement of the Case

2. This is a dissolution of marriage action initiated by Appellee/Wife in Hillsborough County (13th Judicial Circuit) (R. 1417-1450).
3. Appellant/Husband admitted venue was initially proper but later filed a verified motion to transfer venue under Fla. Stat. § 47.122 "in the interest of justice" due to judicial bias, discovery obstructions including severe attorney misconduct, due process violations, and systemic corruption that has infected the 13th Circuit Family Law Division (R. 47-60).

4. The facts of this case reveal a pattern of unmistakable corruption – officials taking action that is contrary to the law and the oath they take in favor some other interest, still undisclosed.
5. Mr. Davis's silence in the face of these allegations Husband has made consistently since November 2024 is also telling.
6. The pattern of actions from the trial court that prevent any meaningful consideration of wrongdoing from Ms. Hodz and Mr. Davis illustrates the collusion across the bench in the 13th Circuit. While Mr. Davis's silence operates as a confession to his involvement in serious misconduct designed at concealing records.
7. Wife continues to oppose Husband's motion to transfer even though it seeks transfer to her current county of residence (R. 16-22).
8. Wife's refusal to agree to transfer jurisdiction to her county of residence offers even further confirmation of the corruption she and Mr. Davis continue to enjoy in the 13th Circuit. Clearly, she's again choosing corruption over cooperation and convenience for herself, choosing to engage in expensive litigation in her attempt to keep Husband trapped in the biased venue.
9. There is no good faith explanation offered for Wife's preference to incur

further costs associated with this appeal as opposed to agreeing to a more convenient venue for her.

10. This is once again consistent with this longstanding pattern demonstrating intentional delay, harassment, obstruction, and concealment from Wife and Davis, as they enjoy the intentional ignorance and cover up attempts from the trial court.

11. The non-sensical positions Wife has taken since the start of the litigation, clearly demonstrate the intent to conceal marital assets. Her position to the trial court that she has nothing to hide, but still continues to steadfastly refuse any compromise that involves providing Husband even reciprocal discovery. That's non-sensical considering the likely financial windfall she would receive if she accepted Husband's offer to void the post marital agreement in exchange for agreeing to reasonable discovery.

12. Wife refused to void the PMA despite Husband's offer and motion highlighting that voiding it would result in a substantial windfall for her under equitable distribution principles (e.g., access to Husband's assets), choosing instead to prolong litigation, object to all Husband's discovery attempts, and escalate conflict through baseless, retaliatory motions, further harming the children (R. 245-261: Husband's motion to void PMA; R. 576-581: Wife's objections to Chase subpoenas even after motion to void,

demonstrates her preference for concealment over cooperation, and the underlying corruption in the 13th Circuit supports it. (R. 23-29)

13. Following the hearing on June 3, 2025, during which Husband explained parts of the long history of corruption and misconduct, Judge Felix denied the motion to transfer on June 24, 2025 (R. 1-4).

14. Appellant moved to vacate the denial under Fla. R. Civ. P. 1.530 and Fla. Fam. L. R. P. 12.530, arguing misapplication of law, constitutional violations, and failure to consider evidence of bias (R. 23-29).

15. The trial court denied the motion, while once again refusing to make any findings of fact regarding Husband's longstanding, consistent, and unrefuted allegations of and requests for relief from attorney misconduct, concealment of evidence, and corruption in the 13th Circuit (R. 61).

16. Once Judge Felix took following Judge Ayers' disqualification, Appellant (for the second time) formally sought emergent relief on subpoenas and discovery to address ongoing obstructions at the core of the parties' dispute and escalating conflict from Wife (R. 93-111). Judge Felix denied the motion as non-emergent without explanation.

17. Appellant moved for a stay pending appeal on July 22, 2025 (R. 62-64).

18. Husband followed up with the Court on 3 occasions without a response (R.

65) despite significant time and expense associated with a rapidly approaching hearing that baselessly threatens the welfare of the children.

19.Appellant filed an amended motion to stay in this Court, given the fast approaching hearing and strong grounds for concerns over bias and corruption in the 13th Circuit. (R. 66-92).

20.Ultimately, the trial court granted the motion to stay on August 1, 2025.

21.This appeal challenges the venue denial based on profound constitutional errors, egregious violations of the Judicial Code of Conduct, and a pervasive pattern of systemic corruption that fundamentally undermines the impartiality of the tribunal and denies Appellant a fair process.

22.These errors, including deliberate obstruction of justice through delay and harassment, compel reversal and immediate transfer to Pasco County to restore due process and protect the parties' children from further harm.

Statement of the Facts

23.Wife admitted in her original petition for dissolution that she made no financial disclosures in relation to the post-marital agreement (R. 844-847; R. 1415-1416: original petition lacking disclosures).

24.Under Casto v. Casto, 508 So. 2d 330 (Fla. 1987), this admission establishes Husband's clear right to discovery into Wife's marital assets to assess the PMA's reasonableness, as nondisclosure shifts the burden to Wife to prove

fairness (R. 146-174; R. 146, ¶¶13, 21; R. 245-261: initial response highlighting discovery as sole issue).

25.Regardless of Husband's efforts to pursue this discovery imperative for a fair process, through motions to compel (R. 188-192), subpoenas (R. 569-575), and repeated pleas in other motions and hearings (R. 848-875), Wife, Mr. Davis, Judge Ayers, and others within the 13th Circuit circled the wagons and collaborated to baselessly attack Husband, weaponizing the children and the legal process to obstruct transparency and retaliate against his insistence on compliance with the law. The trial court has put off Husband's sole concern since May of 2024 just as Wife and her attorney insist on keeping marital assets hidden as long as possible. (R. 188-192; 130-145; R. 1527-1548; R. 835-840)

26.Personal attacks against Husband from Mr. Davis and Judge Ayers were acknowledged as unsubstantiated during hearings, with no evidence supporting claims of any inappropriate emails or misconduct by Husband, once he had the opportunity to press that issue during a hearing, (R. 898-941; R. 47-60; R. 188-192, pp. 1-3, ¶¶3-8, 10-13). Judge Ayers and Mr. Davis were agreeing on conclusory admonishments and dismissals of Husband, but there was a complete lack of support for those allegations when addressed during the hearings. (R. 848-1365).

Wife's concealment of marital income/assets during and after marriage, prior to initiation of formal proceedings:

27. As illustrated by Wife's initial onslaught of pleadings and explained in Husband's Response (R. 146-174; R. 245-261, filed May 14, 2024), the sole issue necessitating court involvement was discovery into Wife's finances to assess PMA reasonableness.
28. Casto v. Casto, 508 So. 2d 330 (Fla. 1987) controls and entitles Husband to reasonable discovery given Wife's refusal to disclose assets at time of entering the post marital agreement. (R. 146-174; R. 245-261).
29. Wife kept her marital income in a separate account for the last few years of marriage, concealing that information from Husband, while he paid the vast majority of household/family expenses (R. 146-174, ¶¶7-10).
30. A major issue in the years leading up to the divorce was Husband's request that Wife assist more with financial obligations for the family at least while he went through some career changes (R. 146-174, ¶¶6, 9, 11).
31. Husband signed a post-marital agreement under duress on October 8, 2023, and with Wife making no disclosures while continuing to conceal what happened to hundreds of thousands of dollars of marital income she kept separately (R. 245-261; R. 146-174, ¶¶13, 24).
32. The parties were completing the divorce process on their own until this

dispute came up on discovery with Wife continuing to refuse Husband access to the accounts that held the concealed marital income referenced above (R. 146-174, ¶¶14-15, 25).

33. Once Wife refused to cooperate in sharing information about marital assets without litigation, Husband immediately pursued an attorney with the sole goal of resolving the discovery as efficiently as possible so that the family can move on to a productive coparenting relationship (R. 146-174, ¶26).

34. The discovery dispute escalated on May 13, 2024, before Husband could even get an attorney. In email correspondence, Husband insisted on financial discovery, citing suspicions of fraud and hidden marital assets (R. 1527-1548, pp. 20-22; R. 582-601, pp. 4-5).

35. Wife responded by filing multiple motions and 16 pages of interrogatories the next day, May 14, 2024 for court-monitored communications and to compel payment of expenses. She attached emails and claimed Husband's communications were threatening although close review of that correspondence shows Husband desperately trying to the time, expense, and damage to the family the litigation process is causing. (R. 1527-1548, ¶¶2-3; R. 582-601, ¶¶6-9; R. 1549-1564).

36. These filings evidence Wife's immediate retaliatory lawfare attack against Husband's insistence on financial discovery, a pattern that will repeat itself (with attorney representation) by December 13, 2024. (R. 1527-1548).
37. Wife had moved out of the marital home into a home she purchased several months before the May 2024 correspondence. There was nothing happening around May of 2024 that changed involving the children or either parent, other than Husband's insistence on financial discovery. (R. 844-847; R. 146-174, ¶¶7-10)
38. Wife never even pursued either motion nor the discovery sought in the 16 pages of interrogatories in the May 14, 2024 attack although Husband did timely provide responses to Mr. Davis.
39. The failure to even pursue any follow up on these May 14, 2024 filings provides further confirmation of Wife's intent – to create conflict and chaos and distract from the discovery issue all consistent with Wife's delay, obstruct, harass, and conceal strategy throughout. (R. 1527-1548; R. 582-601)

Pattern of delay, obstruct, burden, and conceal with Mr. Davis handling the case.

40. Davis's pattern of obstruction and increasing conflict began early and persisted through a series of emails where Husband sought clarification and cooperation on discovery, only to be met with refusal, deflection, and

escalation. On November 25, 2024, Husband emailed Davis seeking basic information and clarification on Wife's positions regarding custody changes and discovery, emphasizing the need for transparency to resolve the case and protect the children (R. 1527-1548). Davis responded minimally or not at all, setting the tone for ongoing obstruction.

41. This pattern continued into January 2025. On January 7, 2025, Davis forwarded an email from the court reporter regarding the December 13, 2024 hearing transcript but provided no substantive response to Husband's inquiries about discovery or the baseless custody motions (R. 1527-1548, p. 27; R. 582-601).

42. Husband followed up on January 31, 2025, with a detailed email seeking clarification on Davis's refusal to provide discovery outside of mandatory disclosures, the purportedly “unrelated nature of custody issues to the discovery dispute,” and why Wife was pursuing GAL and psychological evaluation without evidence (R. 1527-1548, pp. 21-25). In this email, Husband responded inline to Davis's statements, numbering seven specific questions for clarification, such as: "1. Your filings represent that the kids are not getting what's in their 'best interest' right now, but you and Sarah are keeping secret what your concerns are? Why?" and "3. The children were an area of agreement for years. What came up about my parenting that's a

concern, that you've needed to keep secret for so long?" (R. 1527-1548, pp. 22-23).

43. Davis's response was evasive, insisting no additional discovery was required and that custody issues were "completely unrelated" to discovery, without addressing the questions or providing any basis for the change (R. 1527-1548, pp. 21-22).

44. Wife's deposition testimony and hearing testimony are completely inconsistent with the record evidence as Wife testifies that the May 14, 2024 filings were not retaliatory but actually were good faith requests relating to concerns she had for the kids.

45. Obviously, Wife's difficulty in finding any story that matches her actions in the litigation which are clearly designed to delay, obstruct and conceal evidence; as there is nothing legitimate about Wife and Mr. Davis's actions and strategies. It is pure bad faith for the purpose of concealing critically relevant evidence and likely fraud Wife perpetrated on Husband. (R. 23).

46. A close review of the record demonstrates a clear intent to leverage the children based on the Wife's escalating lawfare, attempts at delay, and Husband's efforts to get the discovery issue before the Judge: The amended petition seeking primary custody filed 25 days before the first discovery hearing, was Wife's creation of a corrupt bargaining chip to exchange for

Husband dropping discovery efforts. When that didn't work, there's a clear pattern of events demonstrating strategically planned misconduct designed to maximize the "obstruct, harass, and conceal" objectives.

47. The lawfare attack of 4 motions filed on December 13, 2024 came precisely as Husband's attorney baselessly withdrew from the claim on a single day's notice.

48. Wife had never filed a motion in the case until that date.

49. The fact that Mr. Davis, Ms. Hodz, and Judge Ayers were able to schedule a hearing that quickly is a minor miracle offering clear evidence of at least something to hide. What other motivation could there be for the incredibly rushed and even cruel manner in which the trial court proceeded with snatching Husband's attorney representation. (Need CITES!)

50. The obstruction escalated in February 2025 emails. On February 7, 2025, following Husband's continued efforts to seek answers and contradict "baseless claims" involving his children, Davis once again refused to engage or make any effort at explaining all the evidence of ethical violations, stating, "I am done communicating with you except as necessary."

51. Yet moments later, Mr. Davis emailed a veiled threat bringing a weapon into the conversation that was previously unmentioned, just after advising that he

would only communicate with Husband when “necessary.”

(R. 1527-1548, pp. 5-8, 13-14).

52. Given the unexpected response, the addition of a weapon, and confirmation that any future communication would be “necessary,” Mr. Davis was clearly aware of the impact of adding the word, “bat” and chose to go forward with the intimidation anyway.

53. Judge Ayers did absolutely nothing to protect Husband nor admonish Mr. Davis for bringing a weapon into the conversation.

54. Davis never contradicted Husband's accusations nor provided the requested discovery, perpetuating the pattern. This course of emails, from November 25, 2024's initial inquiries, through January 7 and 31's (2025) refusals to clarify or produce non-objectionable documents in his possession, to February 7's aggressive shutdown, demonstrates Davis's consistent strategy of obstruction, deflection, and escalation to avoid addressing the core discovery issue. (R. 1527-1548; R. 582-601; R. 130-145, p. 1: intentional obstruction of Husband's discovery efforts).

55. Baseless retaliatory filings like the December 13, 2024 motions have introduced unnecessary and ongoing conflict into the coparenting situation and placed Husband in an impossible situation.

56. It's obvious Wife is trying to find faults with anything he does because she has a motion pending that makes allegations still completely unsupported by the facts. (R. 66)

57. Wife has every motive to actively work against the coparenting relationship, a problem that is escalating the past several weeks to a concerning degree given the ongoing conflict surrounding the children. (R. 93),

58. Only Wife has the ability to resolve this dispute. And she could do so immediately, just by showing some transparency, providing the equivalent of what Husband had to provide in response to her interrogatories. The fact that she's putting the family through over a year of litigation suggests there are very significant secrets that need to get out if there's any hope of a successful coparenting relationship.

Pattern of Events and Evidence of Concealment, Harassment, Obstruction, and Corruption.

59. The Court's failure to address the misconduct for over a year has directly resulted in more formal and severe litigation tactics that now comprise a longstanding pattern of obstruction and concealment harmful to the children and the coparenting relationship. (R. 1527-1548; R. 582-601; R. 130-145: intentional obstruction of Husband's vacation plans, church ceremony where

Husband and children became members of Grace Lutheran Church, and refusal to engage in further dialogue).

60. During the January 21, 2025 hearing, when Husband sought to inquire into the conversations between Davis and his former attorneys that led to their abrupt change in outlook, Ayers explicitly stated that "the conversations between attorneys are not discoverable. They are privileged," preventing any exploration of potential misconduct.

61. Despite no legal basis for such privilege, Judge Ayers just makes one up that puts an attorney in direct conflict with her client, but it accomplishes her intent - shielding ethical violations from scrutiny for the attorneys who practice before her. (R. 942-985, p. 7).

62. Judge Ayers made a factually absurd legal assertion, with the obvious goal of covering up for and suppressing information about attorney misconduct, a near constant recurrence for Husband in the 13th Circuit.

63. The collusion and "thick as thieves" culture in the 13th Circuit prioritized Hodz's baseless withdrawal, over Husband's due process, ultimately turning to truly terrifying lengths as Judge Ayers and Mr. Davis attempted to force a GAL on healthy, happy children.

64. What should be a simple discovery issues persists as the Court's handling of that matter supports delay, just as Mr. Davis and Wife want – a dishonest,

corrupt result that harms Husband and complicates many years of coparenting.

65. Wife has provided no response to Husband's third Request for Production despite no objections, a motion to compel, no response, and multiple unanswered follow-ups; R. 835-840; R. 297-305; R. 66-92: Appellate motion with exhibits).

66. The noncompliance is willful, intentional, and ongoing ever since Mr. Davis reached the stipulation on a discovery deadline, June 28, 2024. Wife made no efforts to comply and committed multiple ethical violations in the process of trying to conceal evidence.

67. Ongoing harm is constant and increasingly burdensome through the 13th Circuit's facilitation of Wife and Mr. Davis's bullying tactics including persistent harassment through baseless filings.

68. Judge Felix's denial of emergent relief on subpoenas which, (if granted, would likely end or greatly limit the litigation in this matter) without explanation, perpetuating due process harms (R. 93-111, ¶¶3-6; attachments on custody disruptions like graduation interference).

69. Forcing the family to continue in this posture now for over 8 months presents a serious risk of harm to the children caused by the corruption involving multiple individuals associated with the 13th Circuit including

those retained and paid to help Husband. (R. 66-92, ¶¶8-10, 12-14; R. 62-64, ¶¶3-4, 8-10; R. 23-29, ¶¶6-11).

70. Davis benefited from the circuit's "local legal culture," with unchecked intentional ethical violations like failing to produce non-objectionable discovery and breaking rules to conceal PMA validity information, and filing and maintaining baseless, retaliatory motions for harassment and imposing burden. (R. 5-15, ¶¶9-13, 21-35; R. 1451-1458, 876-897, 835-840, 47-60, 16-22, 5-15, 1-4, 93-111, 23-29, 1342-1365, 62-64, 61, 65, 187, 175-187, 188-192, 193-199, 1459-1488, 1459-1488, 200-222, 112-124, 223-227, 815-822, 228-244, 486-492, 1028-1051, 262-267, 268-270, 306-308, 312-315, 1052-1121, 1122-1341, 13-15, 66-92, 271-296, 215).

72. These facts demonstrate a pattern of unfairness that § 47.122 was designed to remedy, amplified by Husband's attorneys' abrupt abandonment after Davis conferences, with no changes in facts or law.

73. Given the identical reactions from Hodz and Samarkos to the Davis conferences and the lack of any explanation for it, one must assume that what truly occurred is illicit or inappropriate.

74. The fact that Judge Ayers suppressed inquiry about it presents further evidence supporting those conclusions and the widespread awareness of inevitable corruption Husband would face given Mr. Davis's intent to "not

cooperate with anything,” precisely what continues to prevent resolution to simple discovery for a year and a half. (R. 1342-1365; R. 175-187; R. 193-199; R. 1459-1488; R. 200-222; R. 876-897; R. 200-222).

75. Judge Felix continued the pattern of ignoring, excusing, and/or covering up severe, ongoing attorney misconduct harming a family consistently for over a year. Husband’s consistent efforts at this singular goal and un refuted facts demonstrating improper litigation tactics and strategy are thus far insufficient to warrant any relief in the 13th Circuit. (R. 1-4; R. 1342-1365; R. 47-60, ¶¶10-35; R. 245-261; R. 62-64).

76. The trial court rejected Husband's motion to vacate the venue transfer denial on August 1, 2025, continuing the pattern of ignoring Husband’s “interest in justice,” assisting or at least prolonging ongoing bias, procedural irregularities, Davis's "mafioso-style" control over former attorneys, unchecked ethical violations, and discovery delays (R. 61; R. 23-29, ¶¶3-5, 36-39, 40-42; R. 61).

77. Despite hundreds of hours of work, thousands of dollars in legal fees, and many more thousands in legal costs, the 13th Circuit continues to delay the one central issue that brought us here.

78. Contrasting the outrageous delays on the core discovery issue with how shockingly quick the Court moved up the December 13, 2024 hearing from

the January date the Court initially chose, when there was no allegation of anything remotely emergent, it becomes very clear that the 13th Circuit looks out for their own before they consider the due process rights of litigants.

79. Extraordinary relief is warranted given the damages already sustained from the lower court's "stall and obstruct" tactics for over a year.

Summary of Argument

80. The trial court abused its discretion by denying venue transfer under Fla.

Stat. § 47.122's "interest of justice" prong, ignoring Husband's "interest in justice," and all the evidence of systemic bias and due process violations, requiring relief over a nonsensical interpretation of the law when combined with Fla. Stat. §47.011.

81. The order misconstrued the motion as a convenience challenge, misapplied non-controlling cases like McGee and Vitale, and violated Appellant's rights to an impartial tribunal under the Florida and U.S. Constitutions.

76. Statutory construction of § 47.122 demands broad interpretation to avoid absurd "traps" in extreme corruption scenarios like these facts where there is such obvious bias that continuing in the one and only appropriate jurisdiction per the statute violates Husband's constitutional right to due process and a fair and impartial tribunal.

77. Transfer to Pasco County is warranted under Goedmakers to protect fairness

and the children, who have suffered direct harm from Wife's retaliatory lawfare tactics, including baseless motions weaponizing parenting issues to distract from discovery.

78. The court's failure to make findings on bias, discovery, and ongoing ethical violations causing significant harm to a litigant and his children—compounded by delays in rulings and multiple recusals (Ayers disqualified, DePaul self-recused) further prejudices Husband and delays justice, requiring reversal and remand with instructions to transfer the case to Pasco County, Wife's county of residence.

79. Systemic corruption is further evidenced by attorneys' abrupt abandonment of discovery objectives after conferences with Mr. Davis, despite no changes in facts or law.

80. The only logical explanation for the sudden change in outlook experienced by Ms. Hodz and Ms. Samarkos is that they were well aware of the corruption and unfairness that were coming for Husband.

81. They were both simply unwilling to help Husband fight for his very basic rights to discovery under these facts, further evidencing the pervasive nature of 13th Circuit corruption and the urgency required of this Appellate Court.

82. The average litigant has no chance of a fair process, and Husband's unique

situation and experience present a unique opportunity for the Court to address active and harmful corruption affecting Florida citizens.

83. The trial court's refusal to allow inquiry into why the sudden change in outlook from Ms. Samarkos and Ms. Hodz, underscores the need for transfer given their unrelenting attempts to avoid this corruption problem.

84. Davis's constant obstruction, from complete and unwavering blanket objections to all subpoenas and Husband's first 2 Requests for production, and the refusal to produce a response to the non-objectionable third one, illustrates Wife's litigation strategy – concealing evidence of Wife's finances at all costs (R. 146-174).

85. The Court's failure to enforce basic mandatory disclosures, sanction misconduct, and allow Husband even just reciprocal discovery post-motion to void (R. 245-261) while the Court allows the retaliatory motions to proceed puts the parties in such an unfair position, the Court may be damaging the family to the point it can't recover.

86. The Court's engagement with suppressing evidence of Davis's misconduct began by December 19, 2024 when she interrupted Husband just as he was starting a list of discovery and ethical violations already committed by Judge Ayers. (R. 898-941)

87. Judge Ayers not only suppressed information about his wrongdoing, she went on to flaunt her intent to move the case forward and vouch for Mr. Davis as a reasonable lawyer who wouldn't engage in delay tactics.

Specifically, Judge Ayers stated:

"Mr. Hanson, we're not going backwards. You've expressed your complete frustration that this case is not going in the direction. I'm going to make sure it does. I've already told you that. I've seen you twice in the last couple weeks. I'm going to set another hearing. It's going to go forward. There's not going to be any delay tactics. I'm going to tell you I know what lawyers delay and what lawyers don't. Mr. Davis is not one of those lawyers that I've ever had a problem with the delay tactics. I'm on top of this case and I don't like that you said I don't care about your case as much as I care about anyone else's. I have roughly --

(R. 898-941, pp. 4-5)

88. Of course, Judge Ayers' now obviously false assurances further confirm the deep nature of the corruption, where the strategy is to tell litigants the opposite of what's true. (R. 30-60)

89. The Court's unlawful retaliation against Husband intensified after Appellant's February 12, 2025 letter to the Chief Judge, turning Ayers vindictive through actions like eye-rolling (April 4, 2025 hearing), feigning due process while pushing the absurd GAL issue, and demonstrating outright and obvious dishonesty (R. 1122-1341, 47-60, 23-29).

90. However, Judge Ayers has clearly acted outside the law and in a manner that intentionally discriminates against Husband in putting off this simple discovery issue for over a year.

91. Judge Felix has shown no indication that he will do anything other than allow Mr. Davis to continue to delay matters further while encouraging conflict, to the great detriment of this family.

Argument

Standard of Review

87. The trial court's denial of Husband's motion to transfer venue involves questions of law. And given the complete refusal to make any findings of fact, the statutory construction and constitutional issues, should be de reviewed de novo. Eggers v. Eggers, 776 So. 2d 1096 (Fla. 5th DCA 2001)

Point I: The Trial Court Abused Its Discretion by Failing to Transfer Venue Under Fla. Stat. § 47.122's 'Interest of Justice' Prong

88. The trial court abused its discretion by misconstruing Appellant's motion as a mere forum non conveniens challenge focused on inconvenience or expense, completely ignoring the independent "interest of justice" prong under § 47.122 (R. 1-4, p. 2, ¶¶C-D).

89. This is the story of a father who, seeking only fair discovery into his soon to be ex-wife's marital income she largely concealed during the last years of marriage to ensure an equitable divorce.

90. Husband was forced into handling this legal matter himself because the 13th Circuit's handling of it raised serious questions about whether any local attorney would have the courage and capability to confront this corruption as Husband has.

91. The court's actions continue to complicate Husband's health and work situations as he tries to protect his children from this web of judicial bias and systemic corruption in the 13th Circuit.

92. From the beginning, Husband's pursuit of legitimate discovery, triggered by Wife's admitted nondisclosure at the time of entering the PMA (R. 844-847) and history of concealing marital assets while avoiding household expenses, met constant distraction and retaliatory tactics from Wife and Davis. (R. 1527-1548; R. 582-601; R. 146-174, ¶¶ 7-10, 13, 21, 24).

91. The 13th Circuit allowed baseless motions to weaponize the children and deflect from Wife's concealment of marital assets when the simple delay and obstruction tactics failed to deter him. (R. 1527-1548; R. 582-601). These efforts to suppress the truth will only increase the costs and pain on the family.

92. Instead of enforcing Rule 12.285, Judge Ayers circled the wagons, calling

Davis a "Teddy Bear" while excusing his absence at key hearings, covering for intentional, ongoing misconduct and attempting to find any reason to reprimand Husband without basis (R. 876-897; R. 898-941).

92. Husband first began to understand the expanse of the corruption when attorney Hodz had the same reaction to the Davis conference that attorney Samarkos did months earlier. Both abruptly abandoned the most basic discovery efforts after private conferences with Davis. (R. 175-187; R. 193-199).

93. Ayers rushed Hodz's withdrawal on, at best 24 hours notice, ignoring Husband's objections and unavailability, in a blatant attempt to bury the misconduct while showing active contempt to Husband and his right to a fair process. (R. 193-199; R. 876-897).

94. After Ayers disqualification, the case was reassigned to DePaul, who self-recused suggesting her recognition of the circuit-wide conflicts. (R. 187)

95. The case landed with Judge Felix, who denied transfer without addressing these facts, perpetuating the bias by ignoring emergent motions, forcing appellate intervention, wasted resources, and further delay and damage to the kids' innocent years. (R. 1-4; R. 1342-1365; R. 62-64; R. 66-92).

96. This inaction contrasts sharply with quick hearings favoring Davis/Hodz, underscoring the favoritism they enjoy.

97. Husband/Appellant presented un rebutted, verified evidence of this extreme bias and systemic corruption, yet the court consistently failed to engage, abusing its discretion. (R. 848-1365).
98. Goedmakers v. Goedmakers, 520 So. 2d 575, 577-78 (Fla. 1988), demands flexible transfers in family cases to ensure fairness, especially where bias threatens impartiality.
99. Statutory construction supports reversal: § 47.122 must be broad to avoid absurd "jurisdictional traps" forcing families into corrupt venues, defying Carroll v. Carroll, 341 So. 2d 771 (Fla. 1977). Narrow interpretation undermines justice, efficiency, and child welfare under § 61.13.
100. The "interest of justice" prong exists for scenarios like this, where venue became so biased and corrupt that it made a fair process impossible for certain litigants. (R. 47-60; R. 23-29; R. 1052-1122).
101. Both the State and Federal Constitutions guarantee Husband due process of law. Husband experienced the bias, corruption and the helplessness that comes with being attacked in an unfair forum, for over a year now, precisely what Husband always tried to avoid.
102. Yet, Wife still objects to transfer to her home county as she chooses corruption over convenience.

103. Wife's objection to transfer to her own county, combined with her refusal to void the PMA despite it ending or at least limiting litigation while giving her a financial windfall (assuming she's been forthcoming to date) (R. 245-261; R. 576-581), reveals improper motives, requiring reversal and remand with instructions to transfer and compel discovery.
104. The only logical view of Wife's position is that she's concealed evidence that would change the equitable distribution analysis.
105. Husband was entitled to the requested discovery since May of 2014 under the Casto analysis yet Wife, Davis and the 13th Circuit prolong the suffering.
106. Allowing this corruption to continue terrorizing the mental and physical health of this family is a massive abuse of judicial discretion, that should compel this Court to remand the case to the 13th Circuit with instructions to immediately transfer jurisdiction to Pasco County, and enter orders compelling Wife's responses to the requests for production, allowing the Chase subpoenas, striking any objections Wife may have had to financial discovery efforts, and any other relief this Court deems appropriate.

Point II: The Venue Transfer Denial Violates Appellant's Constitutional Rights to Due Process and an Impartial Tribunal

107. Husband's quest for transparency turned into a nightmare of constitutional violations when the 13th Circuit's bias created a "jurisdictional

trap," denying due process (Fla. Const. Art. I, § 9; U.S. Const. Amend. XIV) and an impartial tribunal. Berry v. Berry, 765 So. 2d 855, 857 (Fla. 5th DCA 2000); Caperton v. A.T. Massey Coal Co., 556 U.S. 868 (2009). 102. Under Mathews v. Eldridge, 424 U.S. 319 (1976), the balancing test weighs overwhelmingly for Husband: The private interest in having a fair end to the marriage, where the parties can move on with the comfort only transparency and truth can offer.

108. As unresolved discovery stalled in the trial court for over a year, Husband suffered delays in medical care, career decisions, and establishing an effective coparenting relationship. (R. 47-60, ¶96; R. 23-29, ¶¶6-11). The risk of erroneous deprivation is high from unchecked bias and systemic corruption—Ayers' vindictiveness post-Chief Judge letter (eye-rolling, GAL push without evidence, R. 1122-1341; R. 306-308), Davis's personal attacks and obstruction (insulting emails, universal discovery objections, R. 112-124; R. 835-840), and Judge Felix's failure to offer relief despite the June 3, 2025 hearing and relevant motions. (R. 1342-1365; R. 23).

109. The government's interest in retaining venue is minimal, with Pasco as a viable alternative where Wife resides (R. 23-29, ¶109). This trap heightens deprivation risks, as the circuit shielded Davis's consistent and ongoing misconduct for over a year. R. 175-187; R. 193-199) and

110. Judge DePaul's self-recusal signals real, deeper conflicts where some in the 13th Circuit are understandably afraid to get involved. (R. 187).
111. Even the appearance of bias must be avoided under Mackenzie v. Super Kids Bargain Store, Inc., 565 So. 2d 1332 (Fla. 1990), extended to venue via § 38.10 and Rule 2.330.
112. Here, the core discovery issue, questions about Wife's concealed marital assets (R. 844-847), continues to be evaded, with the trial court protecting Davis from his own longstanding ethical violations against Husband. (R. 47-60, ¶117).
113. Wife's escalating child weaponization (summer vacation/graduation/church interference, R. 93-111), the Court's continuing refusal to compel discovery before forcing hearings on GAL and other retaliatory motions, and evidence supporting widespread corruption from actions involving DePaul, Hodz, and Samarkos (R. 245-261) raise legitimate fears of partiality.
114. The fact that Husband cannot get the discovery he's sought for over a year when he disclosed all assets to Wife at the time of filing the PMA and he's requesting less documentation than he had to produce for Wife.
115. This includes Wife's retaliatory lawfare from May of 2014 before attorneys, sudden and quiet change in custody position in October 2024,

days after Husband's home was flooded by hurricane Helene, and the barrage of lawfare attacks again on December 13, 2024.

116. Looking at the timeline of Davis's delays and course of what he's filed, it's obvious the objective is retaliation and obstacles blocking Husband's discovery push. They actively weaponize parenting issues without any evidence of concerns over Husband's parenting nor the children's welfare. The conduct from Wife and Mr. Davis is especially cruel because it attacks Husband's children directly, and additionally, Husband independently and as a father, all while he has to look over his shoulder for Wife to create conflict or manufacture complaints.

117. Davis, Wife, and the trial court are creating artificial conflict that harms the children, and transfer to a new venue is the only possible solution.

Point III: The Trial Court's Reliance on McGee and Vitale Is Erroneous and Non-Binding

118. The trial court's reliance on McGee v. McGee, 145 So. 3d 955 (Fla. 1st DCA 2014), and Vitale v. Vitale, 994 So. 2d 1242 (Fla. 4th DCA 2008), is misplaced, as these address forum non conveniens under § 47.011, not the "interest of justice" prong of § 47.122. Goedmakers, 520 So. 2d at 578.

119. McGee and Vitale are non-binding and do not preclude transfers where bias renders venue unjust, as in the present facts. (R. 1-4; R. 47-60).

120. Accordingly, state and Federal constitutional rights to a fair and imbalanced tribunal should control over a litigant, like Wife in the present facts, who is objecting to a more convenient forum for her, her current county of residence.
121. The courts should make an effort to look at the facts and use common sense. The trial court's handling of this matter supports corruption and concealment over transparency and fairness.
122. Citizens of Florida deserve Judges who follow the law, and reversal and remand are necessary under the present facts.

Point IV: Transfer to Pasco County Is Essential to Restore Justice and Protect the Children

123. Transfer to Pasco County—Wife's residence—is essential under *Goedmakers v. Goedmakers*, 520 So. 2d 575 (Fla. 1988), to protect the children's best interests (§ 61.13) from the 13th Circuit's corruption, which has enabled Wife's retaliatory lawfare and inflicted ongoing harm.
124. The children, miraculously still thriving in a 50/50 custody arrangement despite Wife's expanding attempts at alienation, have been weaponized as leverage since Wife's abrupt October 2024 shift in custody position, culminating in her all-out attack via the December 13, 2024 motions (R. 130-145; R. 1527-1548).

125. These motions were pursued purely as retaliation and lawfare to deter Husband's legitimate discovery efforts into concealed marital assets—filed immediately after his May 13, 2024 emails demanding reciprocity (R. 1527-1548, pp. 20-22; R. 582-601, pp. 4-5).
126. When this tactic failed to push Husband away from discovery, Wife and Davis were stuck proceeding with the motions or admitting their frivolity, forcing Husband into a defensive position for months where he must look over his shoulder as Wife tries to "find and create problems" to try and find support for baseless allegations. (R. 93-111, attachments showing custody disruptions like graduation interference).
127. To date, Mr. Davis has never provided any facts, arguments, or evidence regarding Husband's parenting deficiencies, nor any safety or welfare concerns with the children to justify this lawfare—starting from the October 2024 custody change and escalating to the December 13, 2024 assault (R. 898-941; R. 47-60). Instead, Davis has resorted to aggressive tactics, including veiled threats in emails (R. 539), which Husband reasonably interpreted as an attempt at intimidation amid heated discovery disputes.
128. This has placed Husband and the children under a constant microscope, with Wife picking at every aspect of parenting and daily life in

hopes of provoking issues to retroactively support her still-baseless motions (R. 130-145, p. 1). The resulting artificial conflict—disrupted routines, unnecessary GAL pushes without evidence (R. 1052-1122), and prolonged instability—directly damages the children's emotional well-being, turning a once-stable family dynamic into chaos solely to shield Wife's financial concealment.

129. Under Casto v. Casto, 508 So. 2d 330 (Fla. 1987), and § 61.075, resolving discovery would end this harm, but the 13th Circuit's bias (e.g., Ayers' GAL gaslighting, R. 1122-1341) perpetuates it. Transfer restores justice, efficiency, and child protection per Thomas v. Thomas, 724 So. 2d 1246 (Fla. 4th DCA 1999), avoiding absurd traps under § 47.011 where corruption overrides fairness (de Rey v. Rey, 114 So. 3d 371 (Fla. 3d DCA); Smith-Fullerton v. Fullerton, 5D2024-0855 (Fla. 5th DCA December 6, 2024)).

130. Wife's refusal to transfer to her own county, despite the windfall from voiding the PMA (R. 245-261), confirms motives of concealment over child welfare, demanding reversal.

Point V: The Trial Court's Failure to Make Specific Findings of Fact on Bias, Discovery, and Ethical Violations Prejudices Appellate Review and Causes Unnecessary Delays

131. The trial court's refusal to make findings on bias, discovery obstructions, and ethical violations—despite verified evidence (R. 47-60)—prejudices review and delays justice, requiring remand under *Broadfoot v. Broadfoot*, 791 So. 2d 584 (Fla. 3d DCA 2001), and *Ruberg v. Ruberg*, 858 So. 2d 1147 (Fla. 2d DCA 2003).
132. No findings address Davis's unchecked misconduct (e.g., universal objections, no RFP responses, R. 835-840; Rule 12.285 violations) or judicial favoritism (*Ayers* excusing absences, R. 876-897), prolonging harm like retaliatory child weaponization without evidence of parenting concerns (R. 898-941).
133. This echoes the pattern of ignoring baseless motions, forcing unnecessary appeals and delaying coparenting, violating Rule 2.330.

Point VI: The Course of Events involving Ms. Samarkos, Ms. Hodz, Mr. Davis, and Judge Felix further confirm the Systemic Corruption in the 13th Circuit that's caused so much unnecessary conflict and expense the last couple of years

134. Systemic corruption is evident in Hodz/Samarkos's abrupt abandonments post-Davis conferences, with no factual/legal changes—only logical explanation: awareness of inevitable bias preventing discovery (R. 175-187; R. 193-199; Fla. R. Prof. Conduct 4-1.16(b)).
135. The court's refusal to inquire about what occurred during those calls effectively stripped Husband of any right to counsel. Husband paid two sets

of reputable attorneys who ran from what was previously described as a simple discovery issue, until Mr. Davis spoke to them. (rushing Hodz withdrawal, R. 876-897).

Conclusion

136. For the foregoing reasons, the trial court's denial of Appellant's motion to transfer venue constitutes a profound abuse of discretion and violates fundamental principles of due process and impartiality under the Florida and U.S. Constitutions.
137. The un rebutted evidence of systemic bias—exemplified by eye-rolling during the April 4, 2025 hearing (R. 1122-1341, pp. 75, 193) and unaddressed delays in the April 22, 2025 transcript (R. 1052-1121, pp. 5-10)—has created an untenable "jurisdictional trap," denying Appellant a fair forum and inflicting irreparable harm on the parties' children through prolonged retaliatory litigation.
138. This Court should reverse the order denying transfer and remand with explicit instructions to: (1) immediately transfer the case to Pasco County, Wife's county of residence, pursuant to Fla. Stat. § 47.122 in the interest of justice; (2) compel Wife to respond fully to Appellant's requests for production and subpoenas, including striking any objections to financial discovery; (3) sanction the misconduct by Wife's counsel, including ethical

violations and baseless motions; and (4) appoint a special master or take other measures to ensure expeditious resolution of the core discovery issues under Casto v. Casto.

139. Such relief is essential to restore justice, protect the children's best interests under Fla. Stat. § 61.13, and prevent further erosion of public confidence in the judiciary. As Judge Ayers herself interrupted in a prior hearing, "we're not going backwards" (R. 848-875, p. 13)—yet the 13th Circuit's actions have done just that, necessitating appellate intervention on two really egregious abuses of discretion, not coincidentally, both intended to benefit Mr. Davis and his client at the expense of Husband.
140. Appellant respectfully requests oral argument if deemed necessary although timeliness and efficiency are paramount given the ongoing damage the 13th Circuit corruption continues to cause Husband and his children.

Certificate of Service

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished by eservice to counsel for Appellee/Wife, Scott Davis, at via the efilng portal, on this 13th day of August, 2025

/s/ Christopher Hanson

Christopher Hanson

Self-Represented Appellant

Certificate of Compliance

This brief complies with Fla. R. App. P. 9.210: 14-pt font, double-spaced, under 13,000 words.

/s/ Christopher Hanson

Christopher Hanson